

FOI REQUESTS — Splink / MoJ probation-to-police pilot

This document contains: (A) a ready-to-send FOI request to the **Ministry of Justice** on the operational Splink uses; and (B) a note on the **parallel request open with the Australian Bureau of Statistics** on the same software, useful as international corroboration. An MP's office can of course also obtain much of this faster via Written Questions (see separate document) — the FOI route is complementary and produces the underlying documents.

A. Draft FOI request to the Ministry of Justice

To: data.access@justice.gov.uk (MoJ FOI/Disclosure team — confirm current address before sending) **Subject:** Freedom of Information request — operational use of Splink record linkage (probation-to-police pilot, Core Person Record)

Dear Ministry of Justice,

Under the Freedom of Information Act 2000, I request access to the following recorded information, held by the Ministry of Justice (and/or HM Prison and Probation Service), concerning the **operational** use of the Splink record-linkage tool as described in the published Algorithmic Transparency Record "Splink Master Record" (gov.uk, 6 October 2025). For clarity, this request concerns the **operational, person-identifying** uses, not the de-identified research use described in the separate "Data First (Splink)" record.

1. **DPIAs.** Any Data Protection Impact Assessment(s) for: (a) the North Essex pilot in which Police National Computer numbers of probation-supervised individuals are shared with the police; (b) the "Core Person Record"; and (c) the use of Splink to retrieve probation records at court for the preparation of a case for sentence.
2. **Legal basis.** Any document recording the legal basis (including the relevant UK GDPR Article 6 and, where applicable, Article 9/10 conditions, and any statutory gateway) relied upon for each of the three operational uses at (1)(a)–(c).
3. **Data-sharing arrangements.** Any data-sharing agreement, memorandum of understanding, or equivalent governing the sharing of Police National Computer numbers (or other probation data) with police forces under the North Essex pilot.
4. **Error and threshold metrics.** Any document recording, for the operational use of Splink: the target and observed false-positive (incorrect-match) and false-negative (missed-match) rates; the match-probability threshold(s) applied before a link is acted upon; and any procedure for handling or correcting an incorrect match that has been acted upon.
5. **Oversight.** Any correspondence with, or advice or assessment from, the Information Commissioner's Office concerning the operational (non-research) use of Splink.

6. **Scope/rollout.** Any document recording the intended scope, evaluation, or planned extension/rollout of the North Essex probation-to-police pilot and the Core Person Record.

If any document is exempt in part, I request the balance with exempt material redacted, and a schedule of documents stating the specific exemption claimed for each. I am content to receive documents electronically and am happy to consult to refine scope if a fees notice would otherwise apply. Given the subject concerns the processing of identifiable data about individuals in the justice system without their consent, I consider disclosure to be strongly in the public interest.

Yours faithfully, [name]

B. Parallel request — Australian Bureau of Statistics (international corroboration)

I have an FOI request open with the **Australian Bureau of Statistics** — reference **FOI2025-26_87** — seeking, in respect of the ABS "Person Linkage Spine" / Multi-Agency Data Integration Project (MADIP):

- the Privacy Impact Assessment(s) and any document identifying the linkage software/method and the **deterministic-to-probabilistic transition** (including whether Splink is used);
- the data-sharing authorisations under Australia's Data Availability and Transparency Act 2022 permitting linkage of **health (Medicare), welfare (Centrelink) and tax** records, and whether unsupervised probabilistic linkage is authorised;
- the linkage-quality / error metrics; and
- how match-probability/uncertainty is communicated to partner agencies for compliance/enforcement/automated-decision purposes.

Why this is useful to the MP's office: it demonstrates that the same open-source tool (Splink) is being deployed on **whole-of-population** health/welfare/tax data in a comparable jurisdiction, on the same probabilistic basis, with the same consent/transparency questions. It is a clean, on-the-record international parallel to the UK justice-system use — and the ABS has *publicly confirmed* (on its own website) that "for the first time in 2025, the Spine was constructed using Splink." If the UK Government tries to characterise the concern as niche or hypothetical, the Australian deployment shows it is neither.

(I will share the ABS's substantive response when it issues. The statutory 30-day clock is running; scope and any charges are currently being settled.)

C. Practical note for the office

- The MoJ holds the documents at (1)–(6); a WPQ can ask them to *publish* a DPIA, while an FOI *compels production* (subject to exemptions). Running both in parallel is the strongest approach — a WPQ answer that declines to publish, set against an FOI that produces (or withholds) the document, is itself informative.

- The most likely exemptions the MoJ will reach for are s31 (law enforcement) and s40 (personal data of third parties). Neither covers a **DPIA, a legal-basis memo, or a data-sharing agreement** in full — those are exactly the documents a public authority is expected to be able to disclose, at least in redacted form, and the public-interest balance favours disclosure for governance documents of this kind.